

26SMCP00213 26SMCP00213

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-25

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The court has before it a petition to compel

arbitration. The petition is DENIED

WITHOUT PREJUDICE. Respondent was only

served with process on July 31, 2026.

The time to respond has not yet expired.

As such, it would deny respondent due process to rule on the petition at

this time. However, petitioner may

reschedule the motion when it would be appropriate to do so.

To aid the parties in the future, the court questions

whether there has been an adequate showing on this motion in any event. Petitioner assumes the FAA applies, but that

is not clear from the showing. The

arbitration clause does not state that it is subject to the FAA. It is true that the FAA governs arbitrations

in written agreements involving interstate commerce, but the moving party has

the burden of showing that this is such a contract. The court also notes that the contract states

that it is governed by Maryland law.

Accordingly, any argument made to compel arbitration must address

Maryland law (to the extent not inconsistent with the FAA if the FAA applies)

or explain why California law would nonetheless govern. All of that said, the court is not suggesting

that these issues cannot be overcome; only that petitioner ought to address

them. It might also be that respondent

does not oppose the petition to compel arbitration. The parties ought to discuss that in advance

of the CMC.